

ITC(HS), 2022

Schedule 1 Import Policy

Section I, LIVE ANIMALS; ANIMAL PRODUCTS

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	Any reference in this Section to a particular genus or species of an animal, except where the context otherwise requires, includes a reference to the young of that genus or species.		
2	Except where the context otherwise requires, throughout this Schedule, any reference to "dried" products also covers products which have been dehydrated, evaporated or freeze-dried.		

Chapter 04 Dairy Produce; Birds Eggs; Natural Honey; Edible Products Of Animal Origin, Not Elsewhere Specified Or Included.

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	The expression milk means full cream milk or partially or completely skimmed milk.		
2	For the purposes of heading 0403, yogurt may be concentrated or flavoured and may contain added sugar or other sweetening matter, fruit, nuts, cocoa, chocolate, spices, coffee or coffee extracts, plants, parts of plants, cereals or bakers wares, provided that any added substance is not used for the purpose of replacing, in whole or in part, any milk constituent, and the product retains the essential character of yogurt.	Notification No. 54/2015-2020	09/02/2022

3	For the purposes of heading 0405 : (a) the term ""butter"" means natural butter, whey butter or recombined butter (fresh, salted or rancid, including canned butter) derived exclusively from milk, with a milkfat content of 80% or more but not more than 95% by weight, a maximum milk solids-not-fat content of 2% by weight and a maximum water content of 16% by weight. Butter does not contain added emulsifiers, but may contain sodium chloride, food colours, neutralising salts and cultures of harmless lactic-acidproducing bacteria; (b) the expression ""dairy spreads"" means a spreadable emulsion of the water-in-oil type, containing milkfat as the only fat in the product, with a milkfat content of 39% or more but less than 80% by weight.		
4	Products obtained by the concentration of whey and with the addition of milk or milkfat are to be classified as cheese in heading 0406 provided that they have the three following characteristics : (a) a milkfat content, by weight of the dry matter, of 5 % or more; (b) a dry matter content, by weight, of at least 70 % but not exceeding 85 %; and (c) they are moulded or capable of being moulded.		
5	This Chapter does not cover: (a) non-living insects, unfit for human consumption (heading 0511); (b) products obtained from whey, containing by weight more than 95% lactose, expressed as anhydrous lactose, calculated on the dry matter (heading 1702); (c) products obtained from milk by replacing one or more of its natural constituents (for example, butyric fats) by another substance (for example, oleic fats) (heading 1901 or 2106); or (d) Albumins (including concentrates of two or more whey proteins, containing by weight more than 80% whey proteins, calculated on the dry matter) (heading 3502) or globulins (heading 3504).	Notification No. 54/2015-2020	09/02/2022

6	For the purposes of heading 0410, the term "insects" means edible non-living insects, whole or in parts, fresh, chilled, frozen, dried, smoked, salted or in brine, as well as flours and meals of insects, fit for human consumption. However, it does not cover edible non-living insects otherwise prepared or preserved (generally Section IV).	Notification No. 54/2015-2020	09.02.2022
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Sub-Heading Notes

Sl.No.	Notes	Notification No.	Notification Date
1	For the purposes of sub-heading 0404 10, the expression "modified whey" means products consisting of whey constituents, that is, whey from which all or part of the lactose, proteins or minerals have been removed, whey to which natural whey constituents have been added, and products obtained by mixing natural whey constituents.		
2	For the purposes of sub-heading 0405 10, the term "butter" does not include dehydrated butter or ghee (sub-heading 0405 90).		

Policy Conditions

Sl.No.	Notes	Notification No.	Notification Date
1	An application for grant of a licence for import of Animals, Birds and Reptiles (including their parts and products) may be made in the form given in ANF 2M of Appendices and Aayat Niryat Forms of FTP (2015-20), to the Director General of Foreign Trade alongwith the recommendation of the Chief Wild Life Warden of the State concerned.		
2	Import of wild animals (including their parts and products) as defined in the Wildlife (Protection) Act, 1972 is prohibited and in respect of those species listed in CITES, is subject to the provisions of CITES.		
3	Prohibition on import of milk and milk products (including chocolates and chocolate products and candies/ confectionary/ food preparations with milk or milk solids as an ingredient) from China is extended until the capacity of all laboratories at ports of entry have been suitably upgraded for testing melamine.		

4	Import of all live-stock products shall be subject to a sanitary import permit to be issued by Department of Animal Husbandry, Dairying and Fisheries, Government of India, as per Section 3A of Live-stock Importation Act, 1898, as incorporated by Live Stock Importation (Amendment) Act, 2001 (Act No. 28 of 2001, 29th August, 2001), or as amended from time to time.		
Supplementary Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	In this Chapter, "wild animal" means wild animal as defined in the Wild Life (Protection) Act, 1972 (53 of 1972).		

Product Description and Import Policy					
HS Code		Description	Import Policy	Policy Condition	Notification No. Notification Date
0401		Milk and cream, not concentrated nor containing added sugar or other sweetening matter.			
04011000	-	Of a fat content, by weight, not exceeding 1 percent	Free		
04012000	-	Of a fat content, by weight, exceeding 1 percent but not exceeding 6 percent	Free		
04014000	-	Of a fat content, by weight, exceeding 6 percent but not exceeding 10percent	Free		
04015000	-	Of a fat content, by weight, exceeding 10 percent	Free		
0402		Milk and cream, concentrated or containing added sugar or other sweetening matter.			
040210	-	In powder, granules or other solid forms, of a fat content, by weight, not exceeding 1.5 percent			
04021010	---	Skimmed Milk	Free	Skimmed milk powder, standard grade must conform to IS 13334 (Part 1) and extra grade must conform to IS	

13334 (Part 2)				
04021020	---	Milk food for babies	Free	
04021090	---	Other	Free	
04022100	-	In powder, granules or other solid forms, of a fat content, by weight, exceeding 1.5 percent : -- Not containing added sugar or other sweetening matter	Free	Milk Powder must conform to IS 1165 and Partly skimmed milk powder must conform to IS 14542
040229	-	In powder, granules or other solid forms, of a fat content, by weight, exceeding 1.5 percent : -- Other		
04022910	---	Whole milk	Free	
04022920	---	Milk for babies	Free	
04022990	---	Other Other:	Free	
040291	-	Other : -- Not containing added sugar or other sweetening matter		
04029110	---	Condensed milk	Free	Condensed Milk, partly condensed milk and skimmed condensed milk must conform to IS 1166
04029190	---	Other	Free	
040299	-	Other : -- Other		
04029910	---	Whole Milk	Free	

04029920	---	Condensed Milk	Free	Condensed Milk, partly condensed milk and skimmed condensed milk must conform to IS 1166		
04029990	---	Other	Free			
0403		YOGURT; BUTTERMILK, CURDLED MILK AND CREAM, KEPHIR AND OTHER FERMENTED OR ACIDIFIED MILK AND CREAM, WHETHER OR NOT CONCENTRATED OR CONTAINING ADDED SUGAR OR OTHER SWEETENING MATTER OR FLAVOURED OR CONTAINING ADDED FRUIT, NUTS OR COCOA				
04032000	-	Yogurt	Free		54/2015-2020	09/02/2022
040390	-	Other :				
04039010	---	Butter milk	Free			
04039090	---	Other	Free			
0404		Whey, whether or not concentrated or containing added sugar or other sweetening matter; products consisting of natural milk constituents, whether or not containing added sugar or other sweetening matter, not elsewhere specified or included.				

040410	-	Whey and modified whey, whether or not concentrated or containing added sugar or other sweetening matter	
04041010	---	Whey, concentrated, evaporated or condensed, liquid or semi-solid	Free
04041020	---	Whey, dry, blocks and powdered	Free
04041090	---	Other	Free
04049000	-	Other	Free
0405		Butter and other fats and oils derived from milk; dairy spreads.	
04051000	-	Butter	Free
04052000	-	Dairy spreads	Free
040590	-	Other	
04059010	---	Butter Oil	Free
04059020	---	Ghee	Free
04059090	---	Other	Free
0406		Cheese and curd.	
040610	-	Fresh (unripened or uncured) cheese, including whey cheese, and curd :	

04061010	---	Mozzarella cheese	Free	.	08/2023	29/05/2023
04061090	---	Other	Free	.	08/2023	29/05/2023
04062000	-	Grated or powdered cheese, of all kinds	Free			
04063000	-	Processed cheese, not grated or powdered	Free			
04064000	-	Blue-veined cheese and other cheese containing veins produced by <i>Penicillium roqueforti</i>	Free			
04069000	-	Other cheese	Free			
0407		Birds eggs, in shell, fresh, preserved or cooked.				
04071100	-	Fertilised eggs for incubation : - - Of fowls of the species <i>Gallus domesticus</i>	Restricted			
040719	-	Fertilised eggs for incubation : - - Other				
04071910	---	Of ducks	Restricted			
04071990	---	Other	Restricted			
04072100	-	Other fresh eggs : -- Of fowls of the species <i>Gallus domesticus</i>	Restricted			
04072900	-	Other fresh eggs : -- Other	Restricted			

04079000	-	Others	Restricted		
0408		Birds eggs, not in shell, and egg yolks, fresh, dried, cooked by steaming or by boiling in water, moulded, frozen or otherwise preserved, whether or not containing added sugar or other sweetening matter.			
04081100	-	Egg yolks : -- Dried	Free		
04081900	-	Egg yolks : -- Other	Free		
04089100	-	Other : -- Dried	Free		
04089900	-	Other -- Other	Free		
04090000		Natural Honey	Free		
0410	-	INSECTS AND OTHER EDIBLE PRODUCTS OF ANIMAL ORIGIN, NOT ELSEWHERE SPECIFIED OR INCLUDED			
041010	-	Insects:			
04101010	-- -	Fresh, chilled or frozen	Restricted	54/2015-2020	09/02/2022
04101020	-- -	Salted, in brine, dried or smoked	Restricted	54/2015-2020	09/02/2022
04101090	-- -	Other	Restricted	54/2015-2020	09/02/2022

041090	-	Other:			
04109010	-- -	Of wild animals	Prohibited	54/2015-2020	09/02/2022
04109020	-- -	Turtle eggs and Salanganes nests (birds nests)	Restricted	54/2015-2020	09/02/2022
04109090	-- -	Other	Restricted	54/2015-2020	09/02/2022